



INDIAN POLITY

GOVERNOR

(PART- 2)

MODULE – 81



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COMPARING VETO POWERS OF PRESIDENT AND GOVERNOR

WITH REGARD TO ORDINARY BILLS

PRESIDENT

- He may give his assent to the bill, the bill then becomes an act.
- He may withhold his assent to the bill, the bill then ends and does not become an act.
- He may return the bill for reconsideration of the Houses.
- If the bill is passed by both the Houses again with or without amendments and presented to the President for his assent, the president must give his assent to the bill. Thus the president enjoys only a 'suspensive veto'.

GOVERNOR

- He may give his assent to the bill, the bill then becomes an act.
- He may withhold his assent to the bill, the bill then ends and does not become an act.
- He may return the bill for reconsideration of the House or Houses.
- If the bill is passed by the House or Houses again with or without amendments and presented to the governor for his assent, the governor must give his assent to the bill. Thus, the governor enjoys only a 'suspensive veto'.
- *He may reserve the bill for the consideration of the President.*

COMPARING VETO POWERS OF PRESIDENT AND GOVERNOR

WHAT HAPPENS WHEN A BILL IS RESERVED BY THE GOVERNOR FOR THE CONSIDERATION OF THE PRESIDENT?

PRESIDENT

- He may give his assent.
- He may withhold his assent.
- He may return the bill for reconsideration of the House or Houses of the state legislature. When a bill is so returned, the House or Houses have to reconsider it within six months. If the bill is passed by the House or Houses again with or without amendments and presented to the president for his assent, *the president is not bound to give his assent to the bill.*

GOVERNOR

- When the governor reserves a bill for the consideration of the President, he will not have any further role in the enactment of the bill.
- If the bill is returned by the President for the reconsideration of the House or Houses and is passed again, the bill must be presented again for the presidential assent only.
- If the President gives his assent to the bill, it becomes an act.
- This means that the assent of the Governor is no longer required

COMPARING VETO POWERS OF PRESIDENT AND GOVERNOR

WITH REGARD TO MONEY BILLS

PRESIDENT

- He may give his assent.
- He may withhold his assent.
- He cannot return the money bill.



Bill of Parliament



WITHHOLD

VETO

RECONSIDERATION

GOVERNOR

- He may give his assent.
- He may withhold his assent.
- He cannot return the money bill.
- He may reserve the bill for the consideration of the President



COMPARING VETO POWERS OF PRESIDENT AND GOVERNOR

WHAT HAPPENS WHEN A MONEY BILL IS RESERVED BY THE GOVERNOR FOR THE CONSIDERATION OF THE PRESIDENT?

PRESIDENT

The President has two alternatives:

- He may give his assent to the bill, the bill then becomes an Act.
- He may withhold his assent to the bill, the bill then ends and does not become an act



GOVERNOR

- When the governor reserves a money bill for the consideration of the President, he will not have any further role in the enactment of the bill.
- If the President gives his assent to the bill, it becomes an Act.
- This means that the assent of the governor is no longer required.

COMPARING ORDINANCE-MAKING POWERS OF PRESIDENT AND GOVERNOR

S.NO	PRESIDENT	GOVERNOR
1	He can promulgate an ordinance only when both the Houses of Parliament are not in session or when either of the two Houses of Parliament is not in session.	He can promulgate an ordinance only when the legislative assembly is not in session or (bicameral legislature) when both the Houses of the state legislature are not in session or when either of the two Houses of the state legislature is not in session.
2	He can promulgate an ordinance only when he is satisfied that circumstances exist which render it necessary for him to take immediate action.	- Same -
3	Co-extensive with the legislative power of the Parliament.	Co-extensive with the legislative power of the State Legislature.
4	He can withdraw an ordinance at any time.	- Same -
5	Has the same force and effect as an act of the Parliament.	Has the same force and effect as an act of the state legislature.

COMPARING ORDINANCE-MAKING POWERS OF PRESIDENT AND GOVERNOR

S.NO	PRESIDENT	GOVERNOR
6	An ordinance issued by him is subject to the same limitations as an act of Parliament. This means that an ordinance issued by him will be invalid to the extent it makes any provision which the Parliament cannot make.	An ordinance issued by him is subject to the same limitations as an act of the state legislature.
7	His ordinance-making power is not a discretionary power. This means that he can promulgate or withdraw an ordinance only on the advice of the council of ministers headed by the prime minister.	He can promulgate or withdraw an ordinance only on the advice of the council of ministers headed by the chief minister.
8	An ordinance issued by him should be laid before both the Houses of Parliament when it reassembles.	An ordinance issued by him should be laid before the legislative assembly or both the Houses of the state legislature (in case of a bicameral legislature) when it reassembles.

COMPARING ORDINANCE-MAKING POWERS OF PRESIDENT AND GOVERNOR

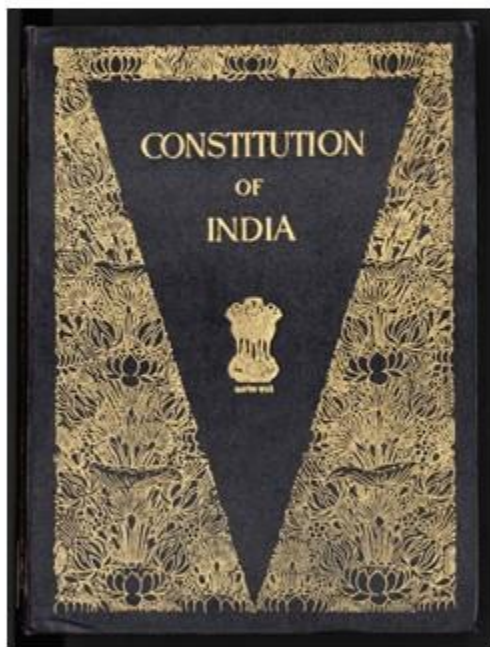
S.NO	PRESIDENT	GOVERNOR
9	An ordinance issued by him ceases to operate on the expiry of 6 weeks from the reassembly of Parliament. It may cease to operate even earlier than the prescribed 6 weeks, if both the Houses of Parliament passes resolutions disapproving it.	An ordinance ceases to operate on the expiry of 6 weeks from the reassembly of the state legislature. It may cease to operate even earlier than the prescribed 6 weeks, if a resolution disapproving it is passed by the legislative assembly and is agreed to by the legislative council.
10	He needs no instruction for making an ordinance.	He cannot make an ordinance without the instructions from the President in three cases: a) If a bill containing the same provisions would have required the previous sanction of the President for its introduction into the state legislature. b) If he would have deemed it necessary to reserve a bill containing the same provisions for the consideration of the President. c) If an act of the state legislature containing the same provisions would have been invalid without receiving the President's assent.

COMPARING PARDONING POWERS OF PRESIDENT AND GOVERNOR

S.NO	PRESIDENT	GOVERNOR
1	He can pardon, reprove, respite, remit, suspend or commute the punishment or sentence of any person convicted of any offence against a Central law.	He can pardon, reprove, respite, remit, suspend or commute the punishment or sentence of any person convicted of any offence against a state law.
2	He can pardon, reprieve, respite, remit, suspend or commute a death sentence. He is the only authority to pardon a death sentence.	He cannot pardon a death sentence. Even if a state law prescribes for death sentence, the power to grant pardon lies with the President and not the governor. But, the governor can suspend, remit or commute a death sentence.
3	He can grant pardon, reprieve, respite, suspension, remission or commutation in respect to punishment or sentence by a court-martial.	He does not possess any such power.

CONSTITUTIONAL POSITION OF GOVERNOR

In estimating the constitutional position of the governor, particular reference has to be made to the provisions of Articles 154, 163 and 164.



- 3** *Article 164:* The council of ministers shall be collectively responsible to the legislative assembly of the state.

- 1** *Article 154:* The executive power of the state shall be vested in the governor and shall be exercised by him either directly or through officers subordinate to him in accordance with this Constitution.

- 2** *Article 163:* There shall be a council of ministers with the chief minister as the head to aid and advise the governor in the exercise of his functions, except in so far as he is required to exercise his functions in his discretion

HOW IS THE CONSTITUTIONAL POSITION OF THE GOVERNOR DIFFERENT FROM THAT OF THE PRESIDENT?

The Constitution makes it clear that if any question arises whether a matter falls within the governor's discretion or not, the decision of the governor is final and the validity of anything done by him cannot be called in question on the ground that he ought or ought not to have acted in his discretion.

- 1 While the Constitution envisages the possibility of the governor acting at times in his discretion, no such possibility has been envisaged for the President.
- 2 After the 42nd Constitutional Amendment (1976), ministerial advice has been made binding on the President, but no such provision has been made with respect to the governor.

CONSTITUTIONAL DISCRETION

- Reservation of a bill for the consideration of the President.
- Recommendation for the imposition of the President's Rule in the state.
- While exercising his functions as the administrator of an adjoining union territory (in case of additional charge).
- Determining the amount payable by the Government of Assam, Meghalaya, Tripura and Mizoram to an autonomous Tribal District Council as royalty accruing from licenses for mineral exploration.
- Seeking information from the chief minister with regard to the administrative and legislative matters of the state.

SITUATIONAL DISCRETION

- Appointment of chief minister when no party has a clear-cut majority in the state legislative assembly or when the chief minister in office dies suddenly and there is no obvious successor.
- Dismissal of the council of ministers when it cannot prove the confidence of the state legislative assembly.
- Dissolution of the state legislative assembly if the council of ministers has lost its majority.

DYNAMIC PORTION OF POLITY

THE MISUSE OF THE POST OF GOVERNOR

The opposition parties accused that the governor's office has been misused in forming government in the states of Karnataka, Goa, Manipur etc.



GOA

- ◆ In the 2017 Assembly Elections, Congress had 17-seats while BJP had 13-seats in the 40-member assembly.
- ◆ But, the BJP was invited by the governor to form the government after it stitched a post-poll alliance with the other parties.

MANIPUR & MEGHALAYA ELECTIONS

Despite not securing a majority, the governor invited the saffron party to form the govt. on the basis of post-poll arrangement.

DYNAMIC PORTION OF POLITY

THE MISUSE OF THE POST OF GOVERNOR



Based on the constitutional principles, it is obligatory for the governor to call that group which appears to have majority support in the House.

CURIOUS CASE OF KARNATAKA

- ◆ In this case, the opposition parties accused the then governor, Vajubhai Vala of favouring the BJP party.
- ◆ It stressed that, had the same principle of forming post-poll alliances been applied to the state of Karnataka, then the Congress-JD(S) combination must have been called to form the government.
- ◆ Instead, the governor gave 15-days time period to BJP to prove its majority which led to horse trading of the MLAs and the usage of money power.

DYNAMIC PORTION OF POLITY

DO WE NEED THE OFFICE OF GOVERNOR?

There are some constitutional provisions which proves the post of governor to be substantial in nature.

- 1 Reporting on the breakdown of constitutional machinery in a state to the president.

- 2 Maintaining the live link between the Centre and the States.

- 3 Reserving important Bills to the President which run counter productive to the Constitution.

- 4 He promulgates ordinances when the Houses of the state legislative assembly is not in session.

- 5 Carryout executive orders during the crucial times of President's rule.

President's rule



ORDINANCE

DYNAMIC PORTION OF POLITY

WHY ABUSE OF GOVERNOR'S POWERS TAKE PLACE?

There are numerous examples of the governor's position being abused. The root cause lies in the process of appointment itself.

- 1 The post has been reduced to becoming a **retirement package** for politicians for being politically faithful to the government of the day.



Justice MM Punchhi

- 2 A candidate wedded to a political ideology could find it difficult to adjust to the requirements of a constitutionally mandated neutral seat.
- 3 A possible solution would be not to nominate career politicians and choose "eminent persons" from other walks of life.
- 4 Both the Sarkaria and M.M. Punchhi Commissions seem to hint at this.

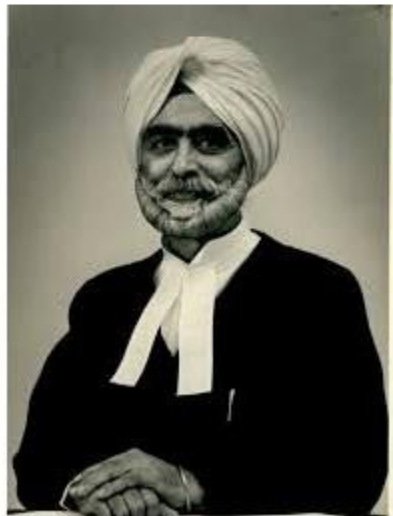
DYNAMIC PORTION OF POLITY

VIEWS OF SARKARIA COMMISSION ON THE POST OF GOVERNOR

There are some constitutional provisions which proves the post of governor to be substantial in nature.

1 He should be eminent in some walk of life.

2 He should be a person from outside the state.



Justice RS Sarkaria

3 He should be a detached figure and not too intimately connected with the local politics of the states.

4 He should be a person who has not taken too great a part in politics generally and particularly in the recent past.

5 The governor cannot dismiss the council of ministers so long as it commands a majority in the assembly.

6 The governor's term of five years in a state should not be disturbed except for some extremely compelling reasons.

DYNAMIC PORTION OF POLITY

VIEWS OF PUNCHHI COMMISSION ON THE POST OF GOVERNOR

The Second commission on Centre-State Relations was set-up by the Government of India in April 2007 under the Chairmanship of Madan Mohan Punchhi, former Chief Justice of India.

POINT NO. 1

On the question of dismissal of a Chief Minister, the Governor should invariably insist on the Chief Minister proving his majority on the floor of the House for which he should prescribe a time limit.

POINT NO. 2

The following guidelines must be adopted to choose a CM:

- The party or combination of parties which commands the widest support in the Legislative Assembly.
- Pre-poll alliance or coalition should be treated as one political party.
- In case no party has a clear majority, the order of precedence to choose CM is:
 1. The group of parties which had pre-poll alliance commanding the largest number.
 2. The largest single party staking a claim to form the government with the support of others.
 3. A post-electoral coalition with all partners joining the government.
 4. A post-electoral alliance with some parties joining the government and the remaining including independents supporting the government from outside.

DYNAMIC PORTION OF POLITY

GOVERNOR – IMPORTANT LINK IN THE FEDERAL STRUCTURE

- 1 As a constitutional figure head, he ensures continuance of governance in the State.



- 2 He acts as a neutral arbiter in times of constitutional crisis.
- 3 In the current political climate, examples being Goa, Manipur and Karnataka — it may seem natural to suggest that the post of the Governor has outlived its utility.
- 4 However, misuse of a position of power should not serve as a justification for removing the office altogether, unless such a position has totally lost its relevance.

The need of the hour is to ensure proper checks and balances to streamline the functioning of this office.

PRELIMS 2019 QUESTION

Which one of the following suggested that the Governor should be an eminent person from outside the State and should be a detached figure without intense political links or should not have taken part in politics in the recent past?

- a) First Administrative Reforms Commission
- b) Rajamannar Committee
- c) **Sarkaria Commission**
- d) National Commission to Review the Working of the Constitution

PRELIMS 2019 QUESTION

With reference to the legislative Assembly of a state in India, consider the following Statements:

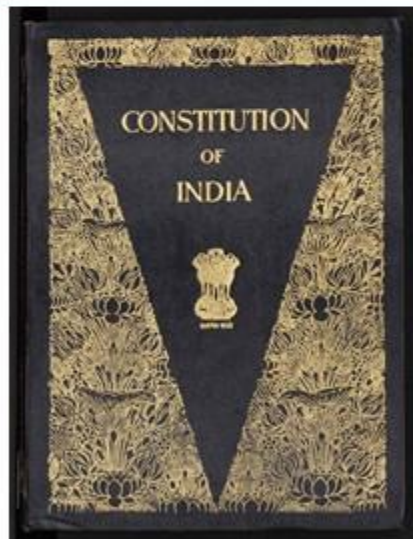
1. The Governor makes a customary address to members of the house at the commencement of the first session of the year.
2. When a State Legislature does not have a rule on the particular matter, it follows the Lok Sabha rule on that matter.

Which of the above is/are correct?

- | | |
|-----------------|--------------------|
| a) 1 only | b) 2 only |
| c) Both 1 and 2 | d) Neither 1 nor 2 |

EXPLANATION

- 1 Speaker of the Legislative Assembly is the final interpreter of the provisions of:
 - a) The Constitution of India
 - b) The rules of procedure and conduct of business of assembly.



- 2 So, Speaker can do whatever he pleases, and not required to follow Lok Sabha rules.
- 3 **Article 208 of the Constitution:** A House of the Legislature of a State may make rules for regulating subject to the provisions of this Constitution, its procedure and the conduct of its business.
- 4 Thus, it's not mandated in the Constitution for the State legislature to follow the rules of Lok Sabha.

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